

CYBER CRIME CASE DOCUMENT

State of Tamil Nadu v. Suhas Katti

C.C. No. 4680 of 2004

Additional Chief Metropolitan Magistrate, Egmore, Chennai

Decision dated 5 November 2004

Academic Case Dossier

Topic: Online harassment, obscene electronic publication, identity misuse, cyber investigation and electronic evidence.

This document is an expanded academic case study based on publicly available descriptions of the historical case. It is not a certified or verbatim copy of the original court judgment. Historical facts are separated from explanatory analysis wherever possible.

The case is widely discussed in Indian cyber-law materials as an early landmark prosecution involving Section 67 of the Information Technology Act, 2000 and Sections 469 and 509 of the Indian Penal Code.

1. CASE IDENTIFICATION AND OVERVIEW

Case: State of Tamil Nadu v. Suhas Katti

Case number: C.C. No. 4680 of 2004

Court: Additional Chief Metropolitan Magistrate, Egmore, Chennai

Date: 5 November 2004

Main reported provisions: Section 67, Information Technology Act, 2000; Sections 469 and 509, Indian Penal Code, 1860.

The case arose from alleged online harassment of a woman. Public case materials describe obscene and defamatory material being posted through internet groups and an electronic identity associated with the complainant. The complainant reportedly received unwanted telephone calls after the online material circulated.

The prosecution therefore involved both a digital act and consequences outside the computer system. The investigation had to establish not only that offensive material existed, but also who was responsible for creating or posting it.

The case is especially useful for cybersecurity students because it combines technical attribution, electronic evidence, witness testimony, criminal law and the practical problems of investigating activity carried out through shared internet facilities.

2. BACKGROUND AND FACTUAL SETTING

Public summaries state that the accused and the complainant were known to each other. The prosecution case connected the later online conduct with an earlier personal relationship and a rejected marriage proposal.

After the complainant's marriage later ended in divorce, the accused reportedly resumed contact. The prosecution alleged that when the complainant did not agree to renewed contact, the dispute moved into the online environment.

The alleged activity included the use of an electronic account or identity associated with the complainant and the publication of obscene material in Yahoo groups. The prosecution theory was that third parties would believe the material was connected to the complainant.

The reported result was reputational harm and unwanted telephone calls from persons who had encountered the online material. This illustrates how cyber harassment can amplify an interpersonal dispute by distributing information to a much larger audience.

From a legal perspective, the case required the court to consider the nature of the electronic publication, the alleged identity misuse, the connection between the online activity and the accused, and the reliability of the evidence placed before the court.

3. CHRONOLOGY OF IMPORTANT EVENTS

Background: The accused and complainant were acquainted, and the prosecution later relied on the history of their relationship while explaining the alleged motive.

February 2004: The complainant approached the authorities concerning the alleged online harassment. Public materials describe investigation by the Chennai Cyber Crime Cell.

7 February 2004: Reported charge materials referred to activity from a cyber café in Sion, Mumbai, including an IP address connected with the alleged online activity.

9 February 2004: Reported materials referred to further activity from another cyber café in Mahim, Mumbai.

24 March 2004: Public case accounts state that a charge sheet was filed before the Additional Chief Metropolitan Magistrate, Egmore.

Trial: The prosecution examined witnesses and produced documentary and material evidence. Public accounts mention cyber-café operators and expert evidence.

5 November 2004: The court delivered its judgment and convicted the accused under the reported provisions.

The dates above are based on public case summaries and should be checked against the original case record for formal legal citation.

4. COMPLAINT AND ALLEGED ONLINE CONDUCT

The central complaint concerned the alleged publication of obscene and defamatory material through internet services. The material was reportedly posted in Yahoo groups and connected to the complainant's identity and contact information.

The prosecution alleged that the activity was intended to damage the complainant's reputation and expose her to unwanted communications. The reported telephone calls were an important consequence because they showed how online content could create physical-world harassment.

The alleged use of a false electronic identity introduced an attribution problem. It was necessary to determine whether the account or material was genuinely created by the complainant, created by another person, or used by the accused to impersonate her.

In a cybercrime investigation, the existence of offensive content is only one part of the case. Investigators must preserve the content, identify the relevant account or service, establish when and where the activity occurred, and develop evidence linking the activity to a suspect.

The case therefore provides an early example of cyber-enabled harassment in which digital publication, identity misuse, reputation and real-world consequences were interconnected.

5. CYBER CRIME CELL INVESTIGATION

The Chennai Cyber Crime Cell investigated the complaint. Public accounts of the case emphasize the role of technical investigation in tracing the source of the online activity.

Complaint stage: The victim supplied information about the online material and the resulting harassment. Early preservation of digital information is important because online records can disappear or change.

Technical trail: Investigators examined network and account information. Public materials refer to IP addresses associated with the relevant activity.

Physical locations: Cyber-café evidence was important because internet users could access services from shared computers. Operators could provide evidence about use of particular facilities.

Witness and expert evidence: The prosecution relied on witnesses and technical expertise to explain the electronic evidence and connect it with the accused.

The investigation demonstrates a general forensic principle: an IP address is not automatically equivalent to the identity of a person. Attribution is stronger when technical information is corroborated by independent evidence such as witness testimony, access records and account information.

6. ELECTRONIC EVIDENCE

Electronic evidence formed a central part of the prosecution. The reported case involved online postings, account information and technical records capable of showing how and where internet activity occurred.

Digital evidence differs from traditional physical evidence because it can be copied perfectly, modified quickly, distributed widely and stored across multiple systems. A court therefore needs reliable information about authenticity, source and integrity.

A basic digital-forensics chain of custody records when evidence was identified, who collected it, how it was preserved, who examined it and where it was stored. The purpose is to reduce uncertainty about alteration or contamination.

In a historical cyber-café investigation, evidence might involve service-provider records, IP information, computer-use information and testimony from operators. Each piece has limitations, so corroboration becomes particularly important.

The case is valuable for students because it shows that technical evidence must be translated into legally meaningful evidence. A court must understand what a digital record proves, what it does not prove, and how it connects to the accused.

7. PROSECUTION WITNESSES AND EVIDENCE

Public accounts state that the prosecution cited a substantial number of witnesses and documentary/material exhibits. One historical account reports 18 witnesses and 34 documents/material objects, with 12 prosecution witnesses examined. These figures should be verified against the original record before formal academic citation.

The complainant's testimony was important for establishing how the online material came to her attention and what consequences followed. Other witnesses could establish circumstances surrounding internet access and the investigation.

Cyber-café operators were significant because they could help connect a technical record with a physical place and a user. In shared-computer environments, this kind of evidence can be particularly useful.

Expert evidence can explain technical concepts such as email systems, web postings, IP addresses, computer records and the origin or integrity of digital artifacts. The expert assists the court but does not replace the court's role in deciding the facts.

The prosecution's case therefore depended on a combination of victim evidence, technical evidence, documentary records, cyber-café testimony and expert assistance rather than on a single digital clue.

8. DEFENCE CONTENTIONS

Public descriptions of the defence state that an alternative explanation was offered for the offending electronic communications. The defence suggested that the complainant or her former husband could have created or sent the material to implicate the accused.

This directly challenged attribution. In a cybercrime case, proving that harmful content exists is different from proving who created, uploaded or transmitted it.

The defence also questioned the evidentiary status of computer-generated records and raised issues concerning the requirements then applicable to electronic documentary evidence.

From a forensic perspective, an alternative hypothesis should be tested. Investigators should consider who had access to an account or computer, whether credentials were shared, whether logs are complete, and whether independent records support the attribution.

Public sources report that the court ultimately rejected the defence explanation and found the prosecution evidence sufficient. This conclusion is part of the reported historical outcome and should be distinguished from the broader academic lessons about how such evidence should be evaluated.

9. LEGAL ISSUES

The case can be organized into several legal and factual questions.

First, whether the alleged electronic publication fell within Section 67 of the Information Technology Act as it existed in 2004.

Second, whether the prosecution proved that the accused was responsible for the relevant online activity.

Third, whether the conduct satisfied the reported elements of Sections 469 and 509 of the Indian Penal Code.

Fourth, whether the electronic records and related testimony were reliable and admissible under the law applicable at the time.

Fifth, whether the total evidence established guilt beyond reasonable doubt.

The official India Code version of the Information Technology Act lists Section 67 in the offences chapter and describes the statutory framework governing electronic offences. Students should always consult the statutory text applicable to the relevant date rather than relying only on modern summaries.

10. SECTION 67 — INFORMATION TECHNOLOGY ACT, 2000

Section 67 was a central provision in the prosecution. It addressed publication or transmission of obscene material in electronic form. The provision illustrates the early attempt to adapt criminal law to internet-based communication.

The significance of the provision in this case was that the alleged conduct was not simply spoken or printed material. It was distributed using electronic communication and online groups.

The historical context matters. The internet environment of 2004 was different from today's social-media environment. Nevertheless, the basic legal problem remains recognizable: how should criminal law respond when harmful content is published electronically and attributed to a particular person?

Students should not confuse Section 67 with Section 66A. Section 66A was later declared unconstitutional by the Supreme Court in *Shreya Singhal v. Union of India* in 2015. The later invalidation does not change the legal provisions under which the 2004 prosecution was conducted.

The official India Code text should be used for the current statutory wording, while the original case should be used to understand how Section 67 was applied in the historical prosecution.

11. SECTIONS 469 AND 509 IPC

The prosecution also relied on Sections 469 and 509 of the Indian Penal Code, 1860. Public sources report convictions under both provisions.

Section 469 concerned forgery intended to harm reputation. In the reported case, the allegation of using an electronic identity associated with the complainant was relevant to the prosecution theory of reputational injury.

Section 509 concerned conduct intended to insult the modesty of a woman, subject to its statutory requirements. The prosecution treated the alleged communications and publication as relevant to this offence.

The combination of general criminal law and technology-specific legislation is a useful feature for cyber-law study. A single digital incident may contain several legally distinct acts, and prosecutors must establish the elements of each offence separately.

The Indian Penal Code has since been replaced by the Bharatiya Nyaya Sanhita, 2023, which came into force on 1 July 2024. The BNS contains savings provisions concerning acts and proceedings under the repealed IPC. This later legislation should not be retroactively substituted for the law applicable to the 2004 prosecution.

12. JUDGMENT AND SENTENCE

Publicly available accounts state that the Additional Chief Metropolitan Magistrate, Egmore, found the accused guilty under Sections 469 and 509 IPC and Section 67 of the IT Act, 2000.

The reported sentence was two years' rigorous imprisonment and a fine of Rs. 500 under Section 469 IPC; one year's simple imprisonment and a fine of Rs. 500 under Section 509 IPC; and two years' rigorous imprisonment with a fine of Rs. 4,000 under Section 67 of the IT Act.

Public sources report that the sentences were to run concurrently. The accused reportedly paid the fines and was lodged in Central Prison, Chennai.

The significance of the outcome is not simply the punishment. The case demonstrated that online conduct could result in a criminal conviction when the prosecution could establish both the prohibited conduct and its attribution to the accused.

Because secondary sources sometimes reproduce the judgment with differences in wording, this dossier does not present a long quotation as though it were the certified original. For formal legal research, the original judgment should be obtained and cited.

13. WHY THIS IS A CYBER-CRIME CASE

The internet was central to the alleged offence. The harmful material was reportedly created, transmitted or published through online services rather than through a purely offline medium.

The case contains several characteristics of cybercrime: online accounts, identity misuse, electronic publication, network information, shared internet facilities and digital evidence.

It also illustrates cyber-enabled harm. The underlying harm included harassment and reputational injury, while technology increased the speed and reach of the conduct.

A useful classification is therefore: cyber-enabled harassment; online impersonation or identity misuse; electronic publication of prohibited content; and digital-evidence investigation.

The case demonstrates why cybercrime education requires both technical and legal knowledge. A cybersecurity professional may identify logs and account activity, while a legal professional must determine how those facts map onto statutory elements and evidentiary requirements.

14. DIGITAL FORENSICS ANALYSIS

A modern forensic review of a similar incident would begin with preservation of original evidence. Screenshots may document what a victim saw, but underlying records can provide stronger evidence where they are lawfully obtainable.

Potential evidence sources: email headers; service-provider records; IP logs; account-registration information; device images; browser history; cyber-café records; witness statements; web pages; and telecommunications records.

Attribution: An IP address generally identifies a network endpoint or connection and does not, by itself, prove which individual was using it. Corroboration is therefore essential.

Integrity: Investigators should document collection procedures and preserve evidence so that later examination can demonstrate that the relevant data was not altered.

Timeline: Timestamps from different systems must be interpreted carefully. Clock differences, time zones and logging policies can affect chronology.

The historical case is valuable because these basic forensic principles were already important when investigators worked with cyber cafés and early web services. Modern tools have changed, but the logic of reliable attribution remains.

15. VICTIM-PROTECTION AND CYBERSECURITY LESSONS

Preserve evidence early: Retain original messages, URLs, account identifiers, dates, times and relevant communications where possible.

Report promptly: Early reporting can help preserve information that may otherwise disappear from online systems.

Secure accounts: Unique passwords and multi-factor authentication reduce the risk of account misuse.

Do not assume attribution: A person's name appearing in an account or message does not automatically establish who created the content.

Use lawful collection: Evidence should be obtained and preserved according to applicable law and procedure.

The case also demonstrates that cyber harassment can have consequences outside cyberspace. Online publication may cause unwanted calls, reputational injury, social pressure and psychological distress. A cybercrime response therefore involves both technical investigation and victim support.

For educational institutions, the case can be used to teach students how to preserve evidence, report abuse, distinguish facts from assumptions and understand the legal consequences of digital conduct.

16. COMPARISON WITH MODERN INVESTIGATIONS

The technology of 2004 was very different from today's environment. Internet users commonly accessed services through cyber cafés and desktop computers. Today, investigations may involve smartphones, social media, cloud accounts, encrypted messaging, application logs and distributed services.

The central questions remain similar: What happened? When did it happen? Which account or device was involved? Who had access? Can the records be authenticated? What independent evidence supports attribution?

Modern investigations can produce much larger datasets. Investigators may use forensic imaging, metadata analysis, timeline correlation, cloud-preservation requests and specialized forensic software.

More data does not automatically mean better evidence. Investigators still need relevance, integrity, provenance and corroboration. Poorly documented evidence can remain weak regardless of the quantity of information collected.

The Suhas Katti case can therefore be treated as a historical baseline for studying the evolution from early internet investigations to today's complex digital-forensics environment.

17. LEGAL DEVELOPMENTS AFTER 2004

Indian cyber law has changed substantially since this case. A major development was *Shreya Singhal v. Union of India*, decided by the Supreme Court in 2015. The Court declared Section 66A of the Information Technology Act unconstitutional, principally because of vagueness and its impact on freedom of speech.

This later decision is important for students because old cyber-law notes often list Section 66A without explaining that it is no longer a valid offence. The *Suhas Katti* case itself should not be rewritten using provisions that were introduced or invalidated later.

Another major development was the enactment of the *Bharatiya Nyaya Sanhita*, 2023. India Code records it as Act 45 of 2023 and gives 1 July 2024 as its enforcement date.

The BNS repealed the Indian Penal Code subject to statutory savings. Therefore, historical offences and proceedings do not simply disappear because the IPC was replaced. The applicable transition rules must be considered.

The Information Technology Act remains a central statute for Indian cyber law. Its offences chapter includes provisions dealing with computer-related offences, identity theft, cheating by personation using computer resources, privacy violations, cyber terrorism and obscene electronic material.

18. CASE SIGNIFICANCE AND CRITICAL ANALYSIS

Attribution: The case demonstrates why connecting digital activity to a human actor is central to cybercrime prosecution.

Corroboration: The reported reliance on cyber-café witnesses, technical evidence and expert assistance shows the value of multiple independent sources.

Technology and law: The case shows how existing criminal law and technology-specific legislation can interact.

Victim impact: Online publication can create offline consequences, including unwanted communications and reputational damage.

Historical importance: The case is frequently described in Indian legal education as the first conviction under Section 67 of the IT Act.

Limitations: This document is not a certified copy of the judgment. Public sources may summarize procedural facts differently. The victim's identity is intentionally omitted. Exact exhibit numbers, witness names and wording should be obtained from the original court record for formal legal research.

The case also teaches an important research discipline: when a source does not establish a fact, a legal analysis should not invent it. This is especially important for legal AI systems that summarize or reason over court documents.

19. CASE STUDY FOR LEGAL-AI / CYBERSECURITY PROJECTS

This case can be converted into a structured dataset for a legal-AI or cybercrime-analysis system.

Entity extraction: Identify the court, accused, complainant, investigating agency, statutes, dates and procedural events.

Timeline generation: Extract dates and arrange the complaint, investigation, charge sheet, trial and judgment chronologically.

Evidence mapping: Link each allegation to the evidence reported as supporting it, while marking disputed or uncertain facts.

Legal-section mapping: Map the conduct to the provisions cited in the historical case and separately record later legal developments.

Contradiction detection: Compare prosecution and defence explanations and identify where they disagree.

Explainability: For each conclusion, show the supporting evidence rather than producing an unsupported label.

Trust and reliability: Distinguish primary court material, official legislation and secondary commentary. Assign higher evidentiary confidence to authoritative primary sources.

This structure is particularly suitable for a multi-agent legal decision-support system because different agents can independently analyze facts, evidence, law, chronology and contradictions before an orchestrator produces a traceable explanation.

20. CONCLUSION AND REFERENCES

State of Tamil Nadu v. Suhas Katti is an important historical Indian cyber-crime case because it connects online harassment, electronic publication, identity misuse, technical attribution and courtroom evidence.

The case shows that a cybercrime prosecution requires more than finding harmful content. The investigation must establish what happened, who was responsible, how the digital evidence was obtained, and whether the complete evidentiary record satisfies the legal standard.

Its historical value should be preserved without confusing old law with current law. Section 66A was later struck down by the Supreme Court, and the IPC was replaced by the BNS from 1 July 2024. The Information Technology Act continues to be an important part of the statutory framework.

For academic work, the original judgment and official statutory sources should be preferred over secondary summaries. This expanded dossier is intended to provide a clear 20-page study structure while avoiding invented facts or presenting commentary as the court's own words.

REFERENCES

1. India Code — Information Technology Act, 2000, official statutory text.
2. State of Tamil Nadu v. Suhas Katti, C.C. No. 4680 of 2004, Additional Chief Metropolitan Magistrate, Egmore, Chennai, judgment dated 5 November 2004. Publicly available case materials consulted for historical facts.
3. Supreme Court of India — Shreya Singhal v. Union of India, (2015) 5 SCC 1, concerning Section 66A of the IT Act.
4. India Code — Bharatiya Nyaya Sanhita, 2023, Act 45 of 2023.

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